Damodar Valley Power Consumers' ... vs Central Electricity Regulatory ... on 23 March, 2026

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(Appellate Jurisdiction)

IA NO.726 OF 2025 & IA NO. 804 OF 2025 IN APPEAL NO. 123 OF 2017
IA NO. 730 OF 2025 & IA NO. 806 OF 2025 IN APPEAL NO. 256 OF 2017
IA NO. 728 OF 2025 & IA NO. 805 OF 2025 IN APPEAL NO. 143 OF 2018
IA NO.729 OF 2025 & IA NO. 799 OF 2025 IN APPEAL NO. 142 OF 2020
IA NO.731 OF 2025 & IA NO. 797 OF 2025 IN APPEAL NO. 255 OF 2017

Dated: 23.03.2026

Present: Hon'ble Ms. Seema Gupta, Officiating Chairperson
Hon'ble Mr. Virender Bhat, Judicial Member

IN THE MATTER OF:

APPEAL NO. 123 OF 2017 & IA NO.726 OF 2025 & IA NO. 804 OF 2025

Damodar Valley Power Consumers' Association
9, A.J.C. Bose Road, 4th Floor,
Kolkata - 700017 ... Appellant(s)

Versus

1. Central Electricity Regulatory Commission
Through Secretary,
4th Floor, Chanderlok Building,
36, Janpath, New Delhi - 110001

2. Damodar Valley Corporation
Through its Chairman & Managing Director
DVC Towers, VIP Road
Kolkata - 700054

3. West Bengal State Electricity Distribution Company Limited
Through Chairman & Managing Director
Block 'DJ' Sector - 11,
Salt Lake City
Kolkata - 700091

4. Jharkhand Bijli Vitran Nigam Limited
Through Chairman & Managing Director
Engineering Building, HEC, Dhurwa
Ranchi - 834004 ... Respondent(s)

Counsel for the Appellant(s) : Rajiv Yadav

Counsel for the Respondent(s) : Sethu Ramalingam for R-1

Vikas Singh, Sr. Adv.
Shri Venkatesh
Shryeshth Ramesh Sharma
Ashutosh Kumar Srivastava
Bharath Gangadharan
Siddharth Nigotia
Nihal Bhardwaj
Shivam Kumar
Kartikay Trivedi
Mohit Gupta
Manu Tiwari
Aashwyn Singh
Akash Lamba
Suhael Buttan
Priya Dhankar
Anant Singh
Kunal Veer Chopra
Vineet Kumar
Nehal Jain
Nikunj Bhatnagar
Vedant Choudhary for R-2

Aabhas Parimal
Himanshu Shekhar for R-4

APPEAL NO. 256 OF 2017 & IA NO. 730 OF 2025 & IA NO. 806 OF 2025

Damodar Valley Power Consumers' Association
9, A.J.C. Bose Road, 4th Floor,
Kolkata - 700017 ... Appellant(s)

Versus

1. Central Electricity Regulatory Commission
Through Secretary,
4th Floor, Chanderlok Building,
36, Janpath, New Delhi - 110001

2. Damodar Valley Corporation
Through its Chairman & Managing Director
DVC Towers, VIP Road
Kolkata - 700054

3. West Bengal State Electricity Distribution Company Limited
Through Chairman & Managing Director
Block 'DJ' Sector - 11,

Salt Lake City
Kolkata - 700091

4. Jharkhand Bijli Vitran Nigam Limited
Through Chairman & Managing Director
Engineering Building, HEC, Dhurwa
Ranchi - 834004 ... Respondent(s)

Counsel for the Appellant(s) : Mr. Rajiv Yadav

Counsel for the Respondent(s) : Vikas Singh, Sr. Adv.
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Shryeshth Ramesh Sharma
Ashutosh Kumar Srivastava
Bharath Gangadharan
Siddharth Nigotia
Nihal Bhardwaj
Shivam Kumar
Kartikay Trivedi
Mohit Gupta
Manu Tiwari
Aashwyn Singh
Akash Lamba
Harsh Vardhan
Suhael Buttan
Priya Dhankar
Anant Singh
Kunal Veer Chopra
Vineet Kumar
Nehal Jain
Nikunj Bhatnagar
Vedant Choudhary for R-2

Aabhas Parimal
Himanshu Shekhar for R-4

APPEAL NO. 143 OF 2018 & IA NO. 728 OF 2025 & IA NO. 805 OF 2025

Damodar Valley Power Consumers' Association
9, A.J.C. Bose Road, 4th Floor,
Kolkata - 700017 ... Appellant(s)

Versus

1. Central Electricity Regulatory Commission
Through Secretary,
4th Floor, Chanderlok Building,
36, Janpath, New Delhi - 110001

2. Damodar Valley Corporation
Through its Chairman & Managing Director

DVC Towers, VIP Road
Kolkata - 700054

3. BSES Rajdhani Power Limited
Through its Chairman & Managing Director
PMG Office, 2nd Floor, B-Block,
BSES Bhawan, Nehru Place
New Delhi - 110019

4. BSES Yamuna Power Limited
Through its Chairman & Managing Director
2nd Floor, A Block,
Shakti Kiran Building
Karkardooma, New Delhi - 110092

5. Tata Power Delhi Distribution Ltd.
(erstwhile North Delhi Power Ltd.)
Through its Chairman & Managing Director
1st Floor, CENNET SCADA Building,
Near PP-3 Grid, Pitampura
New Delhi - 110034

6. Punjab State Power Corporation Ltd.
Through its Chairman & Managing Director
Shed No. TI-A, Patiala - 147001

7. Madhya Pradesh Power Management Co. Ltd.
(erstwhile Madhya Pradesh Power Trading Co. Ltd.)

Through its Chairman & Managing Director
Shakti Bhawan, Vidyut Nagar,
Jabalpur - 482008

8. Tata Steel Ltd.
Through its Chairman & Managing Director
PGP Works, General Office (W-175)
Jamshedpur - 831001 ... Respondent(s)

Counsel for the Appellant(s) : Rajiv Yadav

Counsel for the Respondent(s) : Vikas Singh, Sr. Adv.
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Shryeshth Ramesh Sharma
Ashutosh Kumar Srivastava
Bharath Gangadharan
Siddharth Nigotia
Nihal Bhardwaj
Shivam Kumar
Kartikay Trivedi
Mohit Gupta
Manu Tiwari

Aashwyn Singh
Akash Lamba
Harsh Vardhan
Suhael Buttan
Priya Dhankar
Anant Singh
Kunal Veer Chopra
Vineet Kumar
Nehal Jain
Nikunj Bhatnagar
Vedant Choudhary for R-2

Ravi Sharma for R-7

APPEAL NO. 142 OF 2020 & IA NO.729 OF 2025 & IA NO. 799 OF 2025

Damodar Valley Power Consumers' Association
Through Chairman
Ideal Centre, 4th Floor,
9 AJC Bose Road,
Kolkata - 700017
Email: chairman@dvc.gov.in ... Appellant(s)

Versus

1. West Bengal Electricity Regulatory Commission
Through Secretary
Plot No. AH/5 (2nd & 4th Floor),
Premises No. MAR 16-1111,
Action Area 1A, Newtown,
Rajarhat, Kolkata - 700163
Email: cp-wberc@gov.in

2. Damodar Valley Corporation
Through Chairman
DVC Towers, VIP Road
Kolkata - 700054
Email: membersecretary@dvc.gov.in ... Respondent(s)

Counsel for the Appellant(s) : Rajiv Yadav

Counsel for the Respondent(s) : C.K. Rai for R-1

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Harsh Vardhan
Abhishek Nangia

Bharath Gangadharan
Siddharth Nigotia
Nihal Bhardwaj
Shivam Kumar
Kartikay Trivedi
Mohit Gupta
Manu Tiwari
Aashwyn Singh
Suhael Buttan
Priya Dhankar
Anant Singh
Kunal Veer Chopra
Vineet Kumar
Nehal Jain
Nikunj Bhatnagar
Vedant Choudhary for R-2

APPEAL NO. 255 OF 2017 & IA NO.731 OF 2025 & IA NO. 797 OF 2025

Damodar Valley Power Consumers' Association
9, AJC Bose Road,
4th Floor, Kolkata - 700017 ... Appellant(s)

Versus

1. West Bengal Electricity Regulatory Commission
Through its Secretary
Poura Bhawan, (3rd Floor) Block-FD,
415-A, Bidhannagar
Kolkata - 700106

2. Damodar Valley Corporation
Through Chairman & Managing Director
DVC Towers, VIP Road
Kolkata - 700054 ... Respondent(s)

Counsel for the Appellant(s) : Rajiv Yadav

Counsel for the Respondent(s) : C.K. Rai for R-1

Shri Venkatesh
Shryeshth Ramesh Sharma
Ashutosh Kumar Srivastava
Punyam Bhutani
Himangi Kapoor
Aditya Tiwari
Harsh Vardhan
Abhishek Nangia
Bharath Gangadharan
Siddharth Nigotia

Nihal Bhardwaj
Shivam Kumar
Kartikay Trivedi
Mohit Gupta
Manu Tiwari
Aashwyn Singh
Suhael Buttan
Priya Dhankar

Anant Singh
Kunal Veer Chopra
Vineet Kumar
Nehal Jain
Nikunj Bhatnagar
Vedant Choudhary for R-2

ORDER

PER HON'BLE MR. VIRENDER BHAT, JUDICIAL MEMBER

1. In this batch of five appeals, the appellant Damodar Valley Power Consumers' Association (in short DVPCA or the Association) has assailed various tariff orders passed by the 1st respondent [Central Electricity Regulatory Commission in appeal Nos.123 of 2017, 256 of 2017 and 143 of 2017 and West Bengal Electricity Regulatory Commission in appeal Nos.255 of 2017 and 142 of 2020], [hereinafter referred to as "the Commission"] whereby the Commission has determined the generation tariff for the power projects owned and operated by the 2nd respondent Damodar Valley Corporation (in short DVC).

2. By this common order, we shall deal with the two sets of identical applications filed in these appeals on behalf of the appellant Association and the 2nd respondent DVC.

3. By way of applications bearing IA Nos.804 of 2025, 805 of 2025, 806 of 2025, 797 of 2025 and 799 of 2025 filed in appeal nos.123 of 2017, 143 of 2017, 256 of 2017, 255 of 2017 and 142 of 2020 respectively, the appellant association has sought impleadment of M/s Maithan Alloys Ltd. as appellant no.2 in these appeals.

4. At the same time, by way of applications bearing IA Nos.726 of 2025, 728 of 2025, 729 of 2025, 730 of 2025, and 731 of 2025 filed in appeal nos.123 of 2017, 143 of 2017, 142 of 2020, 256 of 2017 and 255 of 2017 respectively, the DVC has sought dismissal of the appeals on the ground that appellant Association is not an aggrieved party in terms of Section 111 of the Electricity Act, 2003, and therefore, had no locus standi to present the appeals.

5. We have heard learned counsels appearing for the appellant, 2nd respondent DVC and the 1st respondent Commission on these two sets of applications. We have also perused the written

submissions filed by the learned counsels.

6. At the outset, we may note that when these appeals were taken up for final disposal in the month of March, 2025, during the course of arguments an objection was raised on behalf of DVC as to the maintainability of the appeals on the ground that the appellant DVPCA does not qualify as an "aggrieved party" and had no locus standi to file these appeals. The DVC filed applications bearing IA Nos.726 of 2025, 728 of 2025, 729 of 2025, 730 of 2025, and 731 of 2025 seeking dismissal of the appeals. It appears that to meet such objections raised on behalf of DVC, the applications bearing IA

Nos.804 of 2025, 805 of 2025, 806 of 2025, 797 of 2025 and 799 of 2025 were filed in these appeals by the association for impleadment of M/s Maithan Alloys Ltd. as appellant No.2.

7. It is submitted by learned counsel for the appellant DVPCA that M/s Maithan Alloys Ltd. did not join as a co-appellant in these appeals at the time of institution of the appeal for the reason that it is a member of DVPCA and it was under the bonafide impression that its interests were being adequately represented and protected in these appeals by the Association. The learned counsel further submitted that even though the Association is competent to file these appeals, impleadment of M/s Maithan Alloys Ltd. is being sought as an abundant caution. It is further pointed out that upon impleadment, M/s Maithan Alloys Ltd. will neither raise any new issue nor make any alternate submissions on merits in contradiction to what is being contended and argued on behalf of the association. He further submits that M/s Maithan Alloys Ltd. was a member of the Association during the relevant period when the impugned tariff orders were passed by the Commission.

8. On behalf of DVC, it is argued that the impleadment applications are fundamentally misconceived and these seek to cure an inherent jurisdictional defect in the instant appeals. It is submitted that since the appeals are not maintainable at all under Section 111 of the Electricity Act, 2003 as DVPCA is not an "aggrieved person", the defect cannot be cured by impleadment of another person at such a belated stage when the appeals had come up for

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final disposal. It is argued that a party cannot be permitted to take advantage of its own error and seek impleadment of another party to cure the defect that goes to the root of the jurisdiction of the Tribunal.

9. The learned counsel would further argue that the impleadment applications having been filed after the filing of applications by DVC seeking dismissal of the appeals, suffer from deliberate and contumacious delay, which has remained to be explained by the Association as well as by M/s Maithan Alloys Ltd., and therefore, the same merits outright rejection. It is submitted that no party against whom a decree or order was passed and which chose not to appeal against the said decree/order, can be impleaded in the appeal filed by some other party after expiry of period of limitation stipulated under the Electricity Act, 2003 for filing of the appeals. Reliance is placed upon judgment of this Tribunal in Surat Citizens' Council Trust v. Gujarat Electricity Regulatory Commission & Ors., appeal no.342 of 2017 decided on 12.08.2024, L.M. Menezes v. Arul Das Jamas AIR 2003 Madras 241, Hindustan Vidyut Products Ltd. v. Delhi Power Co. Ltd (2014) 13 SCC 662, Paras Ram v. Maharaj Ekling Singhji, 1984 SCC OnLine Raj 23, Sheikh Yusuf v. Haji Mohammad

Jamil Ahemad, 2014 SCC OnLine Bom 4611, and Palachaerla Anandu v. Palacherla Subbarayudu, 1958 SCC OnLine AP.

10. On the aspect of locus standi of the appellant Association to file these appeals, it is argued by learned counsel for the DVC that since the

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Association DVPCA is a company incorporated under Section 8 of the Companies Act, 2013, it is a separate juristic entity distinct from its members. It is pointed out that the association does not procure electricity for its own use from DVC and therefore, the association is neither a consumer within the meaning of Section 2(15) of the Electricity Act, 2003 nor a "person aggrieved" envisaged under Section 111 thereof. It is argued that there is nothing on record to show that the orders impugned in these appeals operate directly upon DVPCA, affect any of its legal rights or impose any obligation upon it. It is submitted that a mere expression of disagreement, dissatisfaction or ideological position to regulatory determination does not confer locus standi upon any party, and therefore, the Association did not have locus standi to institute these appeals. Reliance is placed upon judgment of Hon'ble Supreme Court in Adi Pherozshah Gandhi v. H.M. Seervai (1970) 2 SCC 484, Cellular Operators Association of India v. CSERC & Anr. in appeal no.127 of 2024 decided on 06.08.2024, and Illachi Devi & Ors. v. Jain Society, Protection of Orphans India & Ors., (2003) 8 SCC 413.

11. It is further argued that maintainability of the appeals is a threshold issue and the objections raised by DVC on the locus standi of DVPCA in instituting these appeals is not only legally tenable but goes to the very foundation of this Tribunal's jurisdiction to entertain the appeals. It is submitted that in case, this Tribunal holds that the appeals are incompetent

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as having been filed by a person not having any locus standi, this Tribunal is duty bound to reject it at any stage, even suo motu. It is argued that there cannot be any estoppel against the law and therefore, can be no waiver of objection with regards to the maintainability of an appeal before this Tribunal. In this regard, reliance is placed upon the judgment of Hon'ble Supreme Court in State of Rajasthan v. Surendra Mohnot & Ors. (2014) 14 SCC 77 and Isabella Johnson (Smt) v. M.A. Susai (1991) 1 SCC 494.

12. On this aspect, it is argued on behalf of the appellant association that no objection was raised by DVC to the maintainability of the instant appeals at the time of the admission or at any stage thereafter till the appeals were taken up for final disposal and having not done so despite being aware about the status of DVPCA as a company incorporated under Section 8 of the Companies Act, 2013, it cannot be permitted to raise the said objection now after more than 5 years of the filing of the appeals, at the stage of final hearing. It is pointed out by the learned counsel for the Association that DVPCA has been categorically held by this Tribunal to be a "person aggrieved" in the orders passed in various appeals filed by the Association the issue is no longer res integra. In this regard, reference is made to the orders passed by this Tribunal in appeal no.862/2023, appeal no.13/2024, appeal no.165/2024, appeal no.345/2024 and appeal no.347/2024 whereby the DVPCA has been permitted to maintain appeal against the tariff orders passed by the Commission. It is argued that the objection raised now by

DVC to the maintainability of the appeals is hit by Doctrine of Issue Estoppel. Reliance, in this regard, is placed upon the judgment of Supreme Court in Raptakos Brett & Co. Ltd. v. Ganesh Property (2017) 10 SCC 643.

13. It is further argued that the DVPCA has been incorporated as a company under Section 8 of the Companies Act, 2013 as a collective body representing the interests of its members who are high-voltage consumers of the electricity supplied by DVC, and therefore, in view of Rule 29 of Appellate Tribunal for Electricity (Procedure, Form, Fee and Record of Proceedings) Rules, 2007 qualifies as the person competent to file appeal against the tariff orders. The learned counsel would further submit that DVPCA has been incorporated with specific object relating to safeguarding the interests of electricity consumers through various means including study of cost of electricity and initiation of appropriate measures in their interests in the States of Jharkhand, Bihar, West Bengal, Uttar Pradesh and Uttarakhand, and therefore, is competent to assail a tariff order which has been and passed in violation of the Electricity Act, 2003 and adversely affect the interests of consumers. It is pointed out that excessive tariff determination vide the impugned orders has to be borne by the consumers including the members of the appellant Association and as such is necessarily prejudicial to their interests. Therefore, on account of direct impact of the tariff on the interests of consumers, DVPCA is virtually

interested in tariff related proceedings and thus, competent to prefer the instant appeals.

14. Citing the judgment of the Hon'ble Supreme Court in A Subhash Babu v. State of AP (2011) 7 SCC 616, it is submitted that the expression "person aggrieved" used in Section 111 of the Electricity Act, 2003 needs to be widely interpreted especially in relation to tariff matters so as to be consistent with the tariff determination procedure and should not be interpreted de hors the scheme of the Act. It is also submitted by the learned counsel that DVPCA regularly participates in tariff proceedings before the State Regulatory Commissions and also preferers appeals regulated against the tariff orders passed by the Commissions, and therefore, is competent to institute and maintain the instant appeals also.

15. Echoing the submissions made on behalf of DVC, learned counsel for the West Bengal Commission also argued that the instant appeals are not maintainable for the reason that the appellant Association lacked the necessary locus standi to maintain a challenge under Section 111 of the Electricity Act, 2003 to the impugned tariff orders passed by the Commission. The learned counsel for the Commission further submitted that impleadment of one of the members of the Association as appellant, as sought by the Association vide impleadment applications, cannot cure this fatal defect retrospectively and cannot revive a time barred cause of action. He would submit that even if Maithan Alloys Ltd. is impleaded as appellant at

this stage, the appeal shall be deemed to have been instituted by Maithan Alloys Ltd. on the date when it is impleaded as an appellant (which could be the date of passing of orders on these applications by the Tribunal), the appeal would patently be time barred, and therefore, such impleadment would not be of any benefit to the appellant Association. He argued that the orders

impugned in these appeals determined the tariff for the control period FY 2006-07 to FY 2008-09 and thus adding a new party to these appeals in the FY 2025-26 to challenge the figures arrived at for the period FY 2006-09 would create huge retrospective financial impact that would disrupt the regulatory chain and would be in violation of the fundamental tenets of the regulatory certainty. He also cited the judgment of this Tribunal in Surat Citizens' Council Trust case to buttress his submissions. Our Analysis:

16. Sub-Section (1) of Section 111 of the Electricity Act, 2003 which specifies as to who can approach this Tribunal by way of appeal lays down :-

> "Section 111. (Appeal to Appellate Tribunal): --- (1) Any person aggrieved by an order made by an adjudicating officer under this Act (except under section 127) or an order made by the Appropriate Commission under this Act may prefer an appeal to the Appellate Tribunal for Electricity: Provided that any person appealing against
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> the order of the adjudicating officer levying any penalty shall, while filing the appeal , deposit the amount of such penalty: Provided further that wherein any particular case, the Appellate Tribunal is of the opinion that the deposit of such penalty would cause undue hardship to such person, it may dispense with such deposit subject to such conditions as it may deem fit to impose so as to safeguard the realisation of penalty."

17. Thus, as per the legal provision, a person who is aggrieved by the order of the Commission is competent to file appeal against that order before this Tribunal. Of Course, as per definition of the word "Person" in Section 2(49) of the Act, it includes a company, association or body of individuals (whether incorporated or not) or an artificial judicial person. Therefore, one cannot dispute that an association (like the appellant herein) fits into the definition of "Person" envisages under Section 2(49) of the Act and hence can maintain an appeal before this Tribunal.

18. However, what Section 111(1) further provides is that the person filing the appeal should be aggrieved by the order appealed against. So, essentially it is only that person who has been affected by the order in question, who is competent to maintain appeal against the same.

> "Aggrieved" means "wronged", "harmed", "affected", "injured"..... Thus, the
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> person coming up in appeal to the Tribunal against an order of the Commission has to satisfy us as to in what manner is he harmed or injured by that order.

19. We may note that only two classes of persons/entities would be affected/aggrieved by a Tariff order issued by the appropriate Commission. One such class consists of the Generating Stations/Distribution Licensees/Transmission Licensees for whom the order determines the tariff and other comprises of the Consumers of the electricity who have to pay the Tariff. The Appellant, admittedly, does not fall within the first mentioned class. It needs to be seen as to whether or not does it fall in the second mentioned class i.e. Consumer.

20. Section 2(15) of the Electricity Act, 2003 defines "Consumer" as:-

> (15) "consumer" means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the works of a licensee, the Government or such other person, as the case may be;

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21. Hence, only that person who gets supply of electricity for his own use from a distribution licensee or the Govt. or whose premises is connected with the works of much licensee or the Govt. for the purpose of receiving electricity, qualifies as a "Consumer" under the Act. So, even is a person is not being supplied electricity but his premises is connected to the network of the distribution licensee or the govt., he would be a "Consumer". What this indicates clearly is that a person cannot be treated as a "Consumer" merely because he owns a premises within the area where the electricity is being supplied, the premises must be connected to the supply network.

22. What is important to note here is that the Parliament has intentionally not used the term "consumer" in Section 111 of the Electricity Act, 2003, as noted hereinabove. The expression used in Section 111 of the Electricity Act, 2003 is "any person aggrieved by an order". Therefore, it is not only a consumer of the electricity who can approach the Commission by way of an appeal under Section 111 of the Electricity Act, 2003 against an order of the State Electricity Regulatory Commission but any other person including a company, an association or body of individuals etc. which, if feels aggrieved by the order of the State Electricity Regulatory Commission, also can approach this Tribunal by way of an appeal under Section 111 of the Electricity Act, 2003.

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23. In the instant appeals, the appellant is Damodar Valley Power Consumers' Association, which is a company incorporated under Section 8 of the Companies Act, 2013. We may note here that a company registered under Section 8 of the Companies Act, 2013 is totally distinct from the other commercial companies. The former is in the nature of a non-profit organization established to promote art, commerce, charity or social cause, whereas the latter are typically formed to make profits for their owners out of the business which they undertake. There is no minimum share capital stipulation for a Section 8 Company, unlike the other private limited or public companies and these are strictly prohibited from paying dividend or distributing profits to their members. These enjoy significant tax exemptions under the relevant provisions of Income Tax Act and also are entitled to offer tax benefits to donors. In essence, Section 8 companies prioritize social impact over financial gains, operate under special regulatory conditions and avail exemptions that regular commercial companies are not entitled to.

24. Thus, the appellant Association is in the nature of a non-profit organization and cannot be equated to the status of other commercial companies. The main objectives to be pursued by the Association have been set out in the Memorandum of Association, a copy of which has been filed on behalf of the Association along with the reply filed to applications of DVC for dismissal of the appals. These are extracted hereinbelow: -

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"(a) THE MAIN OBJECTS TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE: -

1. To promote, protect and safeguard the rights, interest of electricity consumers in Eastern India by every legitimate means.

2. To study the costs of supply of electricity and strive for a fair and equitable pricing for its.

3. To promote the optimal use of electricity and its conservation.

4. To work for the increase in the quality and reliability of electricity supply.

5. To encourage friendly feeling and unity amongst electricity consumers in Eastern India on subjects connected with their common interest and to take-

up, consider and discuss questions connected with or affecting the interest of electricity consumers.

6. To organize and establish a separate department or departments of the Association for the purpose of research work and investigation regarding consumption, usage and generation of e l e c t r i c i t y

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and for such other purposes as are mentioned in the objects of the Association.

7. To promote co-operation between electricity consumers to effect joint purchase of electricity to their advantage, to remove any obstacles against maintenance of fair and reasonable prices.

8. To urge or oppose legislation and other measures and to procure change of law and practice adversely affecting trade, commerce and industries in India, in general, and electricity trade and industry in particular in order to safeguard the interest of electricity consumers and others.

9. To collect and circulate statistics and other information relating electricity and its usage, generation and other factors affecting it.

10. To study element of cost of production of electricity and to apply that knowledge to secure the maximum reduction in electricity cost wherever possible, for the benefit of electricity consumer.

Provided that the company shall not support with its funds, or endeavour to impose on, or procure to be observed by, its members or others, any

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regulation or restriction or which as on object of the Company, would make it a trade union."

25. It is, therefore, manifest that the main object of formation of appellant Association and its incorporation under Section 8 of the Companies Act is to safeguard the rights and interests of the electricity consumers in Eastern India, to work for the betterment of electricity supply as well as its quality, to urge or oppose legislations as well as other measures adversely affecting electricity trade and industry in particular to safeguard the interests of electricity consumers and to apply the knowledge about the elements of production cost of electricity to secure maximum reduction in electricity cost, wherever possible, for the benefit of the electricity consumers. In so far as the eligibility for becoming member of the Association is concerned, same has been set out in the Articles of Association in the following words: -

> "3. Membership of the Association is open to any person or persons including body corporate, society, partnership firm and their nominees or their representatives, who consume high voltage electricity generated in and around Damodar Valley Region in India.
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> 4. The Board of Director shall have the power to refuse the admission of any person as the Member of the
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> Association, where in the opinion the Board of Director, it is desirable not to admit such person to the Membership. The Board of Directors shall not be bound to state any reasons for such opinion and its decision in this behalf shall be final and binding upon the applicant and members.
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> 5. Every member of the Association shall subscribe to and undertake faithfully to abide by the rules and regulations of the Association from time to time being in force."

26. Thus, only the persons including body corporates, associates, partnership firms and their nominees who consume high voltage electricity generated in and around Damodar Valley Region in India are eligible to be admitted as members of the Association. Therefore, in effect, the appellant is an Association of the high voltage electricity consumers getting their electricity supply from DVC.

27. Considering these facts, it cannot be gainsaid that the Association is an interested party to the tariff determination process undertaken by the Electricity Regulatory Commissions in the State of West Bengal, Bihar and Jharkhand, and therefore, would feel aggrieved in case of enhancement of tariff by the Commission in the tariff orders, which would directly impact its

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members who are the high voltage electricity consumers. Once the consumers of electricity supplied by DVC are affected by a tariff order passed by the Regulatory Commission, naturally the appellant

Association, which comprises of none other than those high voltage electricity consumers, would fall within the ambit of "aggrieved person" envisaged under Section 111 of the Electricity Act, 2003, and hence, is competent to maintain appeal before this Tribunal against any tariff order.

28. Reliance on the judgment of this Tribunal in Surat Citizens' Council Trust v. Gujarat Electricity Regulatory Commission and Ors. (2024) SCC OnLine APTEL 89 on behalf of the DVC and the Commission is totally misplaced. In that case, this Tribunal had come to the conclusion that in Trust Deed of the appellant Trust none of the objects for which the appellant Trust was created, as mentioned in the Trust Deed, related to espousing the rights of citizens qua the public utility services including the supply of electricity. The Trust Deed also did not permit the appellant Trust to foray into the sphere of electricity supply. It is in these circumstances that this Tribunal held the appellant Trust not to be an "aggrieved person" competent to maintain challenge to the tariff order passed by the Commission. However, that is not the case in the instant appeals. As already noted hereinabove, the appellant Association has been formed mainly and solely for safeguarding the rights and interests of the electricity consumers in order to secure maximum reduction in electricity cost for the benefit of consumers.

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29. We are, thus, unable to countenance the contentions on behalf of the DVC that the appellant Association do not have locus standi to institute these appeals.

30. Having held so, we may also note that the plea on behalf of DVC that the appellant Association does not have locus standi to assail the tariff orders of the Commission by way of the instant appeals on the basis of which the applications for dismissal of the appeals have been filed, is hit by the Doctrine of "Issue Estoppel". It is not in dispute that appellant Association had assailed various other tariff orders passed by the West Bengal Commission by way of appeal nos.862/2023, 13/2024, 165/2024, 345/2024, 347/2024 etc. In all these appeals DVC has been arrayed as respondent and the appellant Association was held to be falling within the ambit of "aggrieved person" under Section 111 of the Electricity Act, 2003 and thus, granted leave to file the appeals. The order passed in this regard in appeal no.862/2023 on 09.11.2023 is extracted hereinbelow: -

> "ORDER IA-2121/2023 (For leave to file Appeal) The Appellant is an association of consumers which are supplied electricity by the DVC. They are aggrieved by the tariff order passed by the Regulatory Commission. Since they would fall within the ambit of a "person aggrieved" under Section 111 of the Electricity
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> Act, we see no reason to deny them leave to file the appeal. Leave, as sought for, is granted and the application is disposed of."

31. Similarly, order dated 04.01.2024 passed in appeal no.13/2024 is extracted hereinbelow: -

> "ORDER IA No. 2391 OF 2023 (for leave to file Appeal) The Appellant, Damodar Valley Power Consumers Association, is a consumer association and is aggrieved by the tariff order passed by the Regulatory Commission. As the Appellant is thereby

also a "person aggrieved", we see no reason to deny them leave to file the appeal. Leave, as sought for, is granted and the application is disposed of."

32. Order dated 08.04.2024 passed in appeal no.165/2024 is extracted hereinbelow: -

(for leave to file Appeal) The members of the Appellant Association are all consumers and are aggrieved by the tariff order impugned in this appeal. Further, they were also the objectors before the Commission. We are satisfied therefore that they are persons aggrieved, entitled to file the present appeal against the impugned order. Leave,

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as sought for, to file appeal is granted. The IA is disposed of accordingly."

33. Concededly, the DVC has not assailed any of these orders and has accepted the same with impunity. Rule of "issue estoppel" envisages that where an issue is decided against a party in any legal proceedings, it would be precluded from raising the same in latter proceedings. This rule is distinct from the rule of "res Judicata". Rule of "res judicata" applies to a court and prohibits court from exercising its jurisdiction with regard to a dispute which has been already decided between the parties and has attained finality whereas the doctrine of issue estoppel is invoked to a particular party in a legal proceeding. The distinction between the two has been aptly explained by the Hon'ble Supreme Court in Raptakos Brett & Co. Ltd. v. Ganesh Property (2017) 10 SCC 643:

"22. In Bhanu Kumar Jain (2005) 1 SCC 787, this Court has considered the distinction between "issue estoppels"

and "res judicata" and has held as follows:

"29. There is a distinction between "issue estoppel"

and "res judicata". (See Thoday v. Thoday [Thoday v. Thoday, (1964) 1 All ER 341

30. Res judicata debars a court from exercising its jurisdiction to determine the lis if it has attained

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finality between the parties whereas the doctrine of issue estoppel is invoked against the party. If such an issue is decided against him, he would be estopped from raising the same in the latter proceeding. The doctrine of res judicata creates a different kind of estoppel viz estoppel by accord.

31. In a case of this nature, however, the doctrine of "issue estoppel" as also "cause of action estoppel" may arise. In Thoday [Thoday v. Thoday, (1964) 1 All ER 341] Lord Diplock held :

'..."cause of action estoppels", is that which prevents a party to an action from asserting or denying, as against the other party, the existence of a particular cause of

action, the non-existence or existence of which has been determined by a court of competent jurisdiction in previous litigation between the same parties. If the cause of action was determined to exist i.e. judgment was given on it, it is said to be merged in the judgment... If it was determined not to exist, the unsuccessful plaintiff

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can no longer assert that it does; he is estopped per rem judicatam.'

32. The said dicta was followed in Barber v.

Staffordshire County Council [Barber v. Staffordshire County Council, (1996) 2 All ER 748 (CA)]. A cause of action estoppel arises where in two different proceedings identical issues are raised, in which event, the latter proceedings between the same parties shall be dealt with similarly as was done in the previous proceedings. In such an event the bar is absolute in relation to all points decided save and except allegation of fraud and collusion. [See C. (A Minor) v. Hackney London Borough Council [C. (A Minor) v. Hackney London Borough Council, (1996) 1 All ER 973: (1996) 1 WLR 789 (CA)].]"

(emphasis supplied)"

34. Once this Tribunal has in various previous orders, as noted hereinabove, held the appellant Association to be an "aggrieved person"

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competent to maintain appeal against a tariff order passed by the Commission under Section 111 of the Electricity Act, 2003 and those orders remaining un-assailed on behalf of DVC, the DVC is precluded by the rule of "issue estoppel" to raise this issue in the instant appeals and that too at the stage of final disposal of the appeals.

35. In the light of above discussion, we, thus, hold that the appellant Association falls within the ambit of "aggrieved person" envisaged under Section 111 of the Electricity Act, 2003, and therefore, competent to maintain the extent appeals against the tariff orders passed by the Electricity Regulatory Commissions. There was no reason or occasion for the appellant Association to seek impleadment of one of its members as appellant. Since, the same has been sought as an abundant caution, the same deserves to be allowed under Order 1 Rule 10 of the Code of Civil Procedure which enables a court to add any person as a party at any stage of the proceedings, if the person whose presence in court is necessary in order to enable the court to effectively adjudicate upon the issues involved in the proceedings. It is true that the impleadment of M/s Maithan Alloys Ltd. has been sought in the year 2025 whereas the instant appeals had been instituted between the years 2017 and 2020 on the basis of which it was argued on behalf of the Commission that by impleadment at this stage, Maithan Alloys Ltd. will be taken to have instituted the appeals in the year 2025, which would b e

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patently time barred. In this regard, we find it expedient to refer to Section 21 of the Limitation Act,

1963 which is extracted hereinbelow: -

> "21. Effect of substituting or adding new plaintiff or defendant.--(1) Where after the institution of a suit, a new plaintiff or defendant is substituted or added, the suit shall, as regards him, be deemed to have been instituted when he was so made a party:
>
> Provided that where the court is satisfied that the omission to include a new plaintiff or defendant was due to a mistake made in good faith it may direct that the suit as regards such plaintiff or defendant shall be deemed to have been instituted on any earlier date. (2) Nothing in sub-section (1) shall apply to a case where a party is added or substituted owing to assignment or devolution of any interest during the pendency of a suit or where a plaintiff is made a defendant or a defendant is made a plaintiff."

36. As per the proviso attached to Section 21(1), the court is empowered to direct that the suit or proceedings shall be deemed to have been instituted on a date earlier than the date when a new party is added to the

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proceedings, where the omission to arraign the new party at the initial stage was due to mistake made in good faith. In the instant case we note that since appellant Association had been concededly participating in the tariff determination proceedings conducted by the Commission continuously and also had been challenging the tariff orders before this Tribunal by way of appeals regularly after obtaining leave to appeal, it was under a bonafide impression that the instant appeals also are maintainable. In fact, in two of the instant appeals also, the Association has been granted leave to appeal. Therefore, we are of the opinion that it was in good faith that the Association did not implead any of its consumers as the appellant in the instant appeals as contemplated under Section 21(1) of the Limitation Act, 1963 and hence, the impleadment of Maithan Alloys Ltd. would relate back to the date when the instant appeals were instituted.

Conclusion: -

37. Resultantly, the applications filed by the appellant association bearing IA Nos.804 of 2025, 805 of 2025, 806 of 2025, 797 of 2025 and 799 of 2025 seeking impleadment of M/s Maithan Alloys Ltd. as appellant no.2 are hereby allowed. However, the applications for dismissal of appeals filed on behalf of DVC bearing IA Nos.726 of 2025, 728 of 2025, 729 of 2025, 730 of 2025, and 731 of 2025 are found to be devoid of any merit and are accordingly dismissed.

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38. The appellant shall file amended memo of parties within two weeks from today.

39. List these appeals on 06.05.2026.

Pronounced in the open court on this the 23rd day of March, 2026.

(Virender Bhat) (Seema Gupta)
Judicial Member Officiating Chairperson

REPORTABLE / NON-REPORATBLE
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